

The National Human Rights Commission (Procedure) Regulations, 1994

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[The National Human Rights Commission \(Procedure\) Regulations, 1994](#)

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[\[17th February, 1994\]](#)

[In exercise of the powers conferred by sub-section \(2\) of section 10 of the Protection of Human Rights Act, 1993 \(10 of 1994](#)

[\), the National Human Rights Commission hereby makes the following regulations, namely:-](#)

1.

Short title and commencement

-(1) These Regulations may be called The National Human Rights Commission (Procedure) Regulations, 1994.

(2)

They shall come into force with effect from the 1st day of March, 1994.

2.

Definitions

.-In these Regulations unless the context otherwise requires,-

(a)

"Act" means the Protection of Human Rights Act, 1993;

(b)

"Chairperson" means the Chairperson of the Commission;

(c)

"Commission" means the National Human Rights Commission;

(d)

"Member" means a Member of the Commission and includes the Chairperson.

3.

Headquarters of the Commission

.-The Headquarters of the Commission shall be located at Delhi.

4.

Venue of the meetings

.-The Commission shall ordinarily hold its meetings and sittings in its office located at Delhi. However, it may, in its discretion, hold its meetings and sittings at any other place in India if it considers it necessary and expedient.

5.

Periodicity of meetings

.-The Commission shall normally have its regular sittings in the first and third weeks of every month, excepting holidays. However, the Chairperson by himself or at the instance of one or more of the members may direct a special sitting of the Commission to be convened to consider any specific matter of urgency.

6.

Secretariat Assistance

.-The Secretary-General, alongwith such other officers of the Commission as may be directed by the Chairperson, or considered necessary, shall attend the meetings of the Commission.

7.

Agenda

.-The Secretary-General shall, in consultation with the Chairperson, prepare the agenda for each meeting of the Commission and shall cause notes thereon to be prepared by the Secretariat. Such notes shall, as far as possible, be self-contained. Specific files covering the agenda items shall be made readily available to the Commission for reference. The agenda papers shall ordinarily be circulated to the Members at least two clear days in advance of every meeting; but when matters are set down only for hearing, cause list of the day of sitting shall be prepared and circulated.

8.

Procedure for dealing with complaints

.- [(1) All complaints in whatever form received by the Commission, shall be registered and assigned a number and placed for admission as per the special or general directions of the Chairperson before a Single-Member Bench constituted for the purpose, not later than one week of receipt thereof. If the Single-Member Bench dealing with the case, either for admission or for final disposal, having regard to the importance of the issues involved, is of the opinion that the case should be heard by a Bench of not less than two Members, he/she may refer the case to a Bench of two Members. On receipt of the reference, the case shall be assigned to a Bench of two or more Members, as may be constituted by the Chairperson. Ordinarily, complaints of the following nature are not entertainable by the Commission:-

(a)

in regard to events which happened more than one year before the making of complaints;

(b)

with regard to matters which are sub-judice;

(c)

which are vague, anonymous or pseudonymous;

(d)

which are of frivolous nature; or

(e)

those who are outside the purview of the Commission.]

(2)

No fee is chargeable on complaints.

(3)

Every attempt should be made to disclose a complete picture of the matter leading to the complaint and the same may be made in English or Hindi to enable the Commission to take immediate action. To facilitate the filing of complaints, the Commission shall, however, entertain complaints in any language included in Eighth Schedule of the Constitution. It shall be open to the Commission to ask for further information and affidavits to be filed in support of allegations whenever considered necessary.

(4)

The Commission may, in its discretion, accept telegraphic complaints and complaints conveyed through Fax.

(5)

The Commission shall have power to dismiss a complaint in limine .

(6)

Upon admission of a complaint, the Chairperson/Commission shall direct whether the matter would be set down for inquiry by it or should be investigated into.

(7)

On every complaint on which a decision is taken by the Chairperson/Commission to either hold in enquiry or investigation, the Secretariat shall call for reports/comments from the concerned Government/authority giving the latter a reasonable time therefor.

(8)

On receipt of the comments of the concerned authority, a detailed note on the merits of the case shall be prepared for consideration of the Commission.

(9)

The directions and recommendations of the Commission shall be communicated to the concerned Government/authority and the petitioner as provided for in sections 18 and 19 of the Act.

(10)

The Commission may, in its discretion, afford a personal hearing to the petitioner or any other person on his behalf and such other person or persons as in the opinion of the Commission should be heard for appropriate disposal of the matter before it and, where necessary, call for records and examine witnesses in connection with it. The Commission shall afford a reasonable hearing, including opportunity of cross-examining witnesses, if any, in support of the complaint and leading of evidence in support of his stand, to a person whose conduct is enquired into by it or where in its opinion the reputation of such person is likely to be prejudicially affected.

(11)

Where investigation is undertaken by the team of the Commission or by any other person under its discretion, the report shall be submitted within a week of its completion or such further time as the Commission may allow. The Commission may, in its discretion, direct further investigation in a given case if it is of opinion that investigation has not been proper or the matter requires further investigation for ascertaining the truth or enabling it to properly dispose of the matter. On receipt of the report, the Commission on its own motion, or if moved in the matter, may direct inquiry to be carried by it and receive evidence in course of such inquiry.

(12)

The Commission or any of its Members when requested by the Chairperson may undertake visits for an on the spot study and where such study is undertaken by one or more Members, a report thereon shall be furnished to the Commission as early as possible.

9.

Minutes of the meetings

.- (a) The minutes of each meeting of the Commission shall be recorded during the meeting itself or immediately thereafter by the Secretary-General or by any other officer as directed. Such minutes shall be submitted to the Chairperson for his approval and, upon approval, be circulated to all the Members of the Commission at the earliest and in any case, sufficiently before the commencement of the next meeting.

(b)

The conclusions of the Commission in every matter undertaken by it shall be recorded in the form of an opinion. Dissenting opinions, if given, shall also form part of and be kept on record. Action shall be taken on the basis of the majority opinion where there be any difference.

(c)

Follow up action .- Unless specifically authorised, no action shall be taken by the Secretariat of the Commission on the minutes of the meetings until the same are confirmed by the Chairperson.

10.

Record of minutes

.- A master copy of the minutes of every meeting and opinions of the Commission shall be maintained duly authenticated by the Secretary-General and a copy of the minutes pertaining to each item shall be added to the relevant file for appropriate action. Opinions shall be kept in the respective records and for convenience, copies thereof with appropriate indexing shall be kept in guard files.

11.

Report of action taken

.- Report of follow up action shall be submitted to the Commission at every subsequent sitting indicating therein the present stage of action on each item on which the Commission had taken a decision in any of its earlier meetings, excepting the items on which no further action is called for.

12.

Transaction of business outside the Headquarters

.- The Commission or some of the Members may transact business at places outside its Headquarters as and when previously approved by the Chairperson, provided that if parties are to be heard in connection with any inquiry under the Act at least two Members shall constitute the bench of the Commission for such purpose.

13.

Authentication of orders and decisions

.- (1) Orders and decisions of the Commission shall be authenticated by the Secretary-General or any officer of the Commission (authorised by the Chairperson) not below the rank of an Under-Secretary.

(2)

Copies of enquiry reports or orders passed finally disposing of matters by the Commission shall be furnished free of cost to the petitioner or his representative.

(3)

Unless any document is classified by the Commission as confidential copy thereof would be available to the parties in the matter on payment of a reasonable fee raised to meet the cost. Every effort should be made to provide the copies with utmost expedition and, in any case, not later than one week of the date of request.

14.

Annual report

.- The Commission shall furnish its annual report for the period commencing from 1st April of the year to 31st March of the succeeding year to the Central Government and to the State Governments concerned as provided in section 20(1) of the Act. The original report shall be signed by the Chairperson and Members of the Commission and appropriately preserved and a duly authenticated copy shall be sent to the appropriate Government by end of May of every year.

15.

Special reports

.- The Commission may furnish such Special Reports on specific matters as may be considered in terms of section 20(1) of the Act.

16.

Reports on Complaints and Inquiries

.-Every report to which sections 18 and 19 of the Act applies shall be sent to the concerned Government, authority or person, as the case may be, within one week of completion of the proceedings before the Commission and on receipt of the comments of the concerned Government or authority, the Commission shall publish the report in the manner provided in section 18(6) or 19(3) of the Act, as the case may be, within one week of the receipt of the appropriate intimation.

17.

Printing of the reports

.-The Secretariat of the Commission shall be responsible for the printing of the Annual Report and Special Reports with utmost expedition and in any case, not later than one month of finalisation of the same.

18.

Investigation Team

.-The Commission shall have its own team of investigation to be headed by a person not below the rank of a Director-General of Police appointed by it and such team shall consist of one Deputy Inspector General of Police, 2 Superintendents of Police, 6 Deputy Superintendents of Police and 24 Inspectors of Police and such other categories of officers as the Commission from time to time decides. The Commission may in any given case appoint an appropriate number of outsiders to be associated with the investigation either as Investigators or Observers.

19.

. As and when any matter which is not covered by these Regulations arises, it shall be competent for the Commission to make appropriate directions and the Commission may add, delete, amplify and amend these Regulations from time to time.

[Substituted by Notification No. NHRC : 28(2)/96-Co-ord., dated 28-11-1996, published in the Gazette of India, Extraordinary, Pt. II, Section 1, dated 28-11-1996.]

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